

Parikshit Sahebrao Thakre Thr. Poa Mr. ... vs Poonam Parikshit Thakre on 11 August, 2022

Author: Vinay Joshi

Bench: V. G. Joshi

1

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH : NAGPUR

CRIMINAL WRIT PETITION NO. 546/2022
(Parikshit Sahebrao Thakre Vs. Poonam Parikshit Thakre)

Office Notes, Office Memoranda of Coram,
appearances, Court's orders of directions

Court's or Judge's orders

and Registrar's orders

Mr. S. P. Bhandarkar, Advocate petitioner.

CORAM : VINAY JOSHI, J.

DATED : 11 /08/2022.

Heard.

2. Petitioner husband is seeking to quash and set aside the order of issuance of warrant passed by the Family Court in Execution Petition No. 23/2019, whereby warrant of arrest has been issued for recovery of arrears of sum of Rs. 2,40,000/-. It reveals that the parties have filed joint petition for divorce in terms of Section 13(B) of the Hindu Marriage Act and they arrived at settlement terms. It appears that in pursuance of settlement terms, the Family Court has passed divorce decree with rider that the petitioner husband will pay monthly maintenance @ Rs. 40,000/- commencing from August, 2019. The learned counsel appearing for the petitioner while challenging the impugned order, would submit that there is no source of power for the Executive Court to directly issue the arrest warrant. It is submitted that the respondent lady has remarried and therefore, the 21wp546.22 term of providing maintenance would not survive, for which the petitioner has filed proceeding for revocation of a divorce decree in particular term of providing the maintenance.

3. In order to show bona fides, the petitioner undertakes to deposit 50% amount of arrears i.e. Rs. 1,20,000/- within a period of two weeks from today. In view of that, issue notice to the respondent returnable after four weeks.

4. In the meantime, the execution of impugned order of issuance of warrant stands stayed provided that the petitioner shall comply with of his undertaking.

(VINAY JOSHI, J.) Gohane Digitally signed by JITENDRA JITENDRA BHARAT BHARAT GOHANE GOHANE Date:

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